AFRICA OVERVIEW

Two Steps Forward, One Step Back?

The year saw no seismic shifts for the better for human rights prospects in the continent. But in a relative sense the backdrop improved, thanks principally to the switch from military to civilian rule in Nigeria, and the successful second democratic elections in South Africa. Not surprisingly, the gloom elsewhere in the continent obscured these and a few other positive developments. But in a difficult environment, the changes, especially in Nigeria, which had been on the critical list for so long, gave some comfort. With their governments committed to human rights promotion and working jointly, Nigeria and South Africa-whose economic and military power by far outranked any other country in Africa-could provide the region with a more coherent vision of the future and a creative surge of political, economic, and cultural activity.

Nigeria Back in the Thick of Things

Fingers crossed, Nigeria went to the polls between December 1998 and February 1999. Few leaders had to preside over such a critical juncture of a nation's history as President Olusegun Obasanjo when he was inaugurated as president on May 29. After being sworn into office, President Obasanjo's first actions included sacking over 150 military officers, ordering a review of all the contracts that his predecessor signed during the year, and setting up an inquiry into human rights abuses. Even some of the fiercest critics of the governments who argued that it had yet to make lasting changes, acknowledged that there was greater individual freedom. At the international level, Nigeria regained credibility in international circles and found a new self-assurance after years of isolation as a pariah state.

Obasanjo had made a modest start in the circumstances but the hardest part was yet to come. It would take a long time to rebuild the moral fabric of Nigeria and its economic and political capacities. With a legacy of a kleptocratic culture that had left claims to good governance threadbare, Obasanjo was yet to take drastic measures to address the triple challenges of economic recovery, constitutional rehabilitation, and political stability. A host of issues remained unresolved: a ruined national economy, overburdened with foreign debt; the impoverished and environmentally degraded oil-producing Niger Delta seething with anger; past human rights abuses; a shattered civil service; an undermined and demoralized judiciary; collapsed infrastructure; the tangled mess of corruption previous military regimes left behind; and the role of the military.

South Africa Still on Course

It was also another good year for South Africa, as its continued transformation from an authoritarian and openly racist state to one concerned with individual rights remained on course. The trend towards maturation of a democratic culture and respect for human rights was confirmed by the successful second and largely problem-free all-race elections held in May, and the smooth succession of Nelson Mandela by former deputy president Thabo Mbeki as president and head of state. Although some statements by the new government caused concern, notably suggestions that individual rights might have to be abridged in the interests of fighting crime, generally South Africa retained its reforming drive and determined commitment to constitutionalism. But even for South Africa any judgment had to remain relatively tentative, as the government faced the huge challenge of addressing, in a hostile international economic environment, the vast inequalities in all aspects of life inherited from the previous regime.

Unfortunately, many countries in Africa did not benefit from any knock-on effect from these transitions. War between Ethiopia and Eritrea and in the Democratic Republic of Congo (DRC; formerly Zaire) raged on for most of the year. Civil conflicts continued in Angola, Burundi, Congo-Brazzaville, Guinea-Bissau, Namibia, Senegal, Sierra Leone, Somalia, Sudan, and Uganda-some attracting intervention from neighboring countries. An armed invasion over the Guinean border threatened to disrupt the shaky peace in Liberia, just emerged two years earlier from war. In countries not rocked by civil war, the outlook remained clouded by intolerance and political uncertainty. Even in Niger, which could be expected tobenefit directly from the transition in its southern neighbor, the trend to democratization seen in much of the continent continued to be defied. In April, a military coup led by commander of the presidential guard, Major Daouda Mallam Wank6, overturned the government of Ibrahim Mainassara, who had himself taken power by coup in 1996. Mainassara was assassinated during the coup, his death described as "an accident" by the new head of state. Presidential elections to return the country to civilian rule were held on October 17, and a run-off election, slated for November 24, had not taken place at this writing.

In southern Africa, however, prospects for long-term peace and prosperity appeared promising. Though democracy and peace did not necessarily correlate exactly, democratic rule in South Africa seemed to have created a more conducive ambience for progress elsewhere. For sure, a few countries, including Swaziland and most of all Angola, were yet to tackle basic reforms. But the progress of democratic transition during 1999 and previous years in Mozambique, previously one of Africa's isolated and backward countries, offered hopes for the future of democratic transitions elsewhere in the continent. With a reviving economy and relative political stability, the only clouds on the horizon were an incoherent political opposition, unanswered questions about war-time human rights abuses, and the fact that the benefits of rapid economic revival remained almost exclusively in cities though the overwhelming majority of Mozambicans continued to live in the countryside. Botswana's human rights and good governance record made it a bastion of stability in southern Africa. Malawi-despite an economic slowdown and political bickering-continued to make reasonable progress on the road from totalitarianism to competitive democracy and integration with the rest of the subregion.

But Zimbabwe continued to be rocked by major crises-economic decline, the battle over land ownership, and involvement in the Congo war. Under pressure from a grouping of civil society organizations embracing lawyers, church people, and human rights activists calling themselves the National Constitutional Assembly (NCA), President Robert Mugabe agreed that the country's constitution should be rewritten. Mugabe proceeded to appoint a Constitutional Review Commission to draft a new document by November, in time for elections scheduled for March 2000. But the NCA declined to be part of the official commission, which was dominated by the ruling party and subject to ultimate control by Mugabe, and instead decided to write an alternative constitution based on popular consultation. The government harassed and intimidated those working outside its control for constitutional reform. Laws restricting freedom of expression and assembly remained in place. Namibia was also rocked when so-called separatists attacked in its Caprivi strip on August 2. Government troops deployed to fight the rebellion reportedly committed widespread abuses, which at this writing were yet to be independently investigated. The state of emergency that was imposed in the wake of the violence was, however, lifted soon after the fighting died down.

There were also some countries outside the Southern African region that were making genuine strides towards accountable government, such as Benin, Ghana, Mali, and Tanzania. Within the past few years, these countries had begun to institute democracy and human rights reforms towards enhancing civic participation and accountable governance, as indispensable components for sustained growth.

Moving Forward, Dragging the Past

Confronted with the twin challenges of political and economic renewal, much of Africa made little headway in adjusting to the imperatives of democratic rule and respect for human rights. A key problem seemed to be that Africa was trying to forge ahead without attempting fundamental reforms to overcome the habits of the past. Yet experience continued to demonstrate that open democracies could not simply be slapped on top of rickety authoritarian systems.

Political leaders in many countries continued to demand personal loyalty and blocked meaningful institutional development needed for a democratic culture, including mechanisms for a peaceful transfer of power. Instead of building stability through economic growth and the construction of democratic institutions, some leaders counted on repression that smothered dissent, manipulated ethnic identities,tightened control on the press, employed dubious methods to crush the formation of independent opposition parties, and scripted elections.

Even the "new" leaders, hailed by some in the international community for bringing better leadership to places like Uganda, Rwanda, and Ethiopia, entrenched their positions through tactics that differed little from their more authoritarian neighbors. Uganda barred opposition political activity outside rare and carefully controlled places and times. President Yoweri Museveni's National Resistance Movement (NRM), in power since 1986, continued to govern through what it called the "movement" or "no-party" system of government, justifying its restrictions on political participation as essential to prevent a return to Uganda's violent past.

The NRM's direct access to state resources and the exclusion of the "movement" structures from the stringent regulations placed on political parties effectively prevented independent political parties from organizing for change through electoral action. In October, President Museveni promised to visiting British minister Peter Hain that he intended introducing multi-party democracy by the year 2007-five years after the next election, although he later denied that statement.

Others in the subregion appeared likely to follow Uganda's highly restrictive approach under the guise of gradual democratization. In early 1999, the Rwandan government, in power since 1994, organized its first elections. Generally hailed as successful, the elections departed from the usual Rwandan practice of voting by secret ballot. Nearly 90 percent of Rwandans physically lined up behind candidates who would represent them at the two most local levels of government. In some places, soldiers and civilian authorities used force or threats to try to compel those who were hesitant to vote or to stand for office. Although ready to concede citizens a voice in local government, authorities failed to consult them about decisions of national policy that were central to their lives, such as the imposition of compulsory "villagization." In mid-1999, national political leaders decreed that the current government would not step down at the end of its five-year mandate, as specified in the Arusha Accords of 1994, but would continue to rule for at least another four years.

The government of the DRC continued attempts to intimidate the political opposition, the free press, and the country's dynamic civil society and human rights movements, though it made cosmetic concessions to an ever retreating democratization agenda. It nominally lifted a ban on political party activities that it had strictly enforced since May 1997 by promulgating a law "liberalizing" political parties at the end of January, in advance of elections slated at the time for April 1999. Opposition parties were quick to reject the law on grounds of its failure to recognize preexisting parties, and the restrictive conditions it set to establish new ones. Seeming to be taking a leaf from Museveni's "movement system," President Kabila introduced Popular People's Committees (CPPs). Elected by local residents at the street, ward, district, and regional levels, the CPPs were mandated to implement government and local decisions throughout the country. Opposition leaders saw in the CPPs a vanguard "grassroots" movement that Kabila would use to legitimize his rule at the approach of elections. But the war provided an excuse for the government to delay the elections until the convening of the "national dialogue" on Congo's political future agreed upon in the peace accord.

There were also resemblances to Uganda's "movement system" in Ethiopia. On August 1, national legislative elections were proclaimed for May 2000. Voters would elect members of the two houses of Ethiopia's parliament from supposedly competitive lists presented by some sixty-five registered political parties. In fact, the ruling Ethiopian Peoples' Revolutionary Democratic Front (EPRDF) asserted strict control over the devolution of power to nine ethnically-defined federal states, through regional ethnic parties associated with it. Registered or unregistered political groupings which sought to retain their autonomy, or to contest ethnic federalism as championed by the EPRDF and enshrined in the 1995 constitution, continued to face uncompromising restraints.

Other seasoned autocrats made token gestures towards opening up the political system, all the while continuing to exclude participation. In Sudan, the government authorized political associations to register to obtain legal status, after a ten year ban decreed when it took power through a military coup in 1989. It timed state assembly elections so soon after, however, that the newly registered political parties balked at presenting candidates, resulting in what remained effectively a one-party state. Most party leaders stayed in exile, objecting to the registration act's requirement of loyalty to the model of an Islamic state. For its part, the Kenyan government continued to stall on promises of reform that would have brought greater democratization and used divide and rule tactics to emasculate the constitutional reform lobby.

Dreams of democracy continued to be dashed by manipulated, flawed, and opposition-boycotted elections. Reports abounded that competitors to incumbents were harassed, disadvantaged by government obstruction or partisanship, or disqualified on technicalities. Togo's March 21 parliamentary elections were run without the participation of the opposition, allowing the Togolese People's Party (RPT) to win seventy-seven of eighty-one seats. The opposition boycotted elections on the grounds that the new elections should not take place until a resolution on the previous year's presidential election had been reached. However, on June 29, all the opposition parties except Gilchrist Olympio's Union of Forces for Change (UFC) decided to drop their challenge to the presidential election in exchange for a rerun of the parliamentary elections and a vow from President Gnassingbe Eyadema, the longest serving president in Africa, that he would not be a candidate in the 2003 presidential election. At this writing, this agreement had already fallen apart as the two sides could not resolve which body would oversee the parliamentary elections.

The refugee situation in Guinea, caused by strife in neighboring Liberia and Sierra Leone, tended to mask political developments within Guinea's borders. At the time of writing the political crisis that began with presidential elections held on December 14, 1998, had not been resolved. While voter turnout for the election was high, it was characterized by a serious crackdown on the opposition leading to the detention of hundreds of activists and at least six deaths. The government also imposed a ban on street demonstrations, closed its borders, and on the day of the election closed the airport and seaports and imposed a travel ban. When the results were announced, with President Lansana Conte leading with 56 percent of the vote, the eighteen opposition members of the electoral committee resigned citing fraud. Alpha Conde, an opposition candidate, was arrested the day following the election for allegedly attempting to leave the country illegally. On December 30, he was also charged with treason. On February 23, his lawyer was sent back to France upon entering the country. At the time of writing Conde remained in prison. The government had promised a trial in September, but it had not taken place.

In Guinea-Bissau, a government of national unity was sworn in February, in accordance with a peace agreement signed in November 1998 to end a civil war that erupted in June 1998 between supporters of President Jo(o Bernardo Vieira and a military junta led by sacked army chief of staff Brigadier-General Ansumane Mane. But elections scheduled for March failed to take place, despite deployment of a 600-strong peacekeeping force from the Economic Community of West African States Military Observer Group (ECOMOG), and General Mane staged a new coup in May to oust Vieira and his supporters from the interim government. Speaker of the national assembly Malam Sanha was sworn in as acting president, and fresh elections were scheduled for November.

On March 7, Equatorial Guinea held its second "free" legislative polls since political pluralism was allowed in 1992. Longtime incumbent President Theodoro Obiang's Democratic Party of Equatorial Guinea won seventy-five seats in the eighty-seat single chamber legislature. However, the fact that many opposition leaders were in jail during the election cast doubts on the legitimacy of the election. Additionally, voters were forced to vote in public without the privacy of a voting booth.

In neighboring Gabon, the opposition refused to recognize the results of the presidential election of December 6, 1998, which were won by incumbent president Omar Bongo with 67 percent of the vote. Presidential elections in the Central African Republic were delayed twice before taking place on September19. President Ange-Felix Patasse won just over half the votes cast. The U.N. reported that voting went smoothly, but opposition candidates rejected the poll results even before they had been announced and demanded annulment of the ballot, accusing Patasse of having rigged the vote.

Even relatively politically open CLte d'Ivoire and Senegal had their fair share of election-related controversy. In Senegal, the ruling Senegalese Socialist Party won forty four of the forty seats contested in January 24 senatorial elections. But the polls were boycotted by all the major opposition parties except the Marxist grouping formed by the Party for Independence and Labor and the African Party for Democracy and Socialism (AJ/PADS), and the Liberal Party of Senegal. In CLte d'Ivoire, controversy surrounding the nationality of the leader of the Republican Party (RDR), Alassane Ouattara, triggered tension in Abidjan in September. Prime minister of CLte d'Ivoire from 1990 to 1993 and a former IMF Deputy Director, Ouattara was slated to be the main opposition candidate to President Henri Konan B6di6 in the year 2000 election. But the government claimed that he had forged evidence of Ivorian nationality and was actually from Burkina Faso. On August 26, the government began investigating his nationality and he was to be questioned on Sept 16. On Sept 14, police clashed and arrested hundreds of RDR supporters at Ouattara's residence.

But Benin's parliamentary elections on March 30, with thirty-five party or coalitionists vying for eighty-three parliamentary seats, were comparatively free of controversy. The election had a high voter turn-out and was generally regarded as free and fair. The opposition led by former president Nicephore Soglo won a one-seat majority, with forty-two of the eighty-three seats. The vote was split geographically, the opposition controlling the south and supporters of President Mathieu Kerekou the north. Cape Verde also ducked the trend of restrictive political control. The ruling Democratic Movement Party (MPD) planned to amend the constitution late in 1999. The amendments would, among other things, focus on strengthening basic human rights provisions, and improving the parliamentary system.

Attacks on the Independent Media

Fearing that further political openings, especially free political expression, would imperil incumbents, ruling regimes continued to crack down on dissenting voices. In many countries, independent journalists were routinely detained, beaten, or forced into exile. In conflict zones journalists were even more at risk. In Sierra Leone, seven Sierra Leonean and one United States reporter were killed by rebel forces during the January offensive. Several more were abducted and wounded. One reporter was executed by ECOMOG forces after being accused of being a rebel collaborator. At least eight journalists were arrested and detained for stories they had written, most following what government and ECOMOG claimed to be false and unsubstantiated reports involving security matters.

In Burkina Faso, Norbert Zongo, chief editor of the private weekly L'independant , was found dead in his car with three others in December 1998 under highly suspicious circumstances. Official investigations implicated several members of President Blaise Compaore's security entourage in the death. While controversy raged, the government continued to crack down on protests, marches, and demonstrations throughout the year.

Though the nongovernmental press in Sudan exercised more freedom despite frequent suspensions by the government press council, the president ordered the closure of an independent daily, Al Rai Al Akhar , on the eve of a mission by the U.N. special rapporteur on freedom of opinion and expression. He explained that he acted at the behest of Islamists and army officers who objected to the frequently-suspended paper's sarcastic treatment of martyrdom, among other things. Neighboring Ethiopia persisted in its practice of flouting media freedom by intimidating outspoken journalists with frequent jailing without charge. Radio stations in Ethiopia were government-owned. Addis Ababa journalist Tegegne was still detained despite paying bail. Yared Kemfe, twenty-four, the editor-in-chief of the newspaper Beza , was arrested on March5, 1999, in Harer, after writing an article describing the region as "an apartheid regime." The latest reports indicated that there were eight journalists still in jail in Ethiopia and several had been forced into exile.

Zambia also persisted in its intimidation and persecution of the independent media. The Post , a leading independent daily, was besieged by police on March 10, causing it to cease publication for the first time in seven years of its existence. The police action followed publication of a story headlined "Angola Worries Zambia Army," which criticized Zambia's military capability and preparedness in the face of a possible military attack from Angola. All the reporters, including editor-in-chief Fred

M'membe, were later charged with "espionage." Although their case was committed to the High Court on April 16, no date was set for trial.

Repression of the press was also the order of the day in Zimbabwe. Mark Chavunduka, editor of the independent Standard newspaper, and reporter Ray Choto were arrested after publishing a report on an alleged military coup attempt in which twenty-three members of the Zimbabwe National Army had been detained for plotting to overthrow the government of President Mugabe. Despite several High Court orders calling for the immediate release of Chavunduka, the authorities failed to comply. The military stated, "The judge cannot direct us...anyone who meddles with military matters is subject to military matters." While in custody, Choto and Chavunduka were reportedly severely assaulted by military police trying to find out the sources of the coup story. They were later released on bail with visible signs of torture on their bodies, including cigarette burns, electric shocks, and submersion in drums of water.

Journalists also faced serious threats in Cameroon and continued to be subjected to expulsions, arrests, and criminal prosecutions in Angola, Burundi, CLte d'Ivoire, Guinea, Kenya, Lesotho, Liberia, Malawi, Mozambique, Niger, Rwanda, Swaziland, Tanzania, Togo, and Uganda.

Unending Wars, Infinite Mayhem

War plunged several countries into chaos and violence, precipitating massive waves of migration, both external and internal. Fueling conflict were small arms and light weapons procured through both covert and overt trade, often financed by proceeds from sale of access to Africa's treasure chest-illicit diamonds and other easily fungible natural resources. In Angola, Sierra Leone, and the DRC conflict was driven by competition for control of diamonds or oil. In the Niger Delta, discontent at the lack of development in the region despite its oil wealth fueled increasing unrest that had the potential, absent decisive action by the Nigerian government and oil companies to address the fundamental complaints, to lead to yet another armed insurrection on the African continent. In many conflicts, mercenaries operated, contributing greatly to state "impunity and irresponsibility," as noted by Enrique Bernales Ballesteros, the U.N. Commission on Human Rights' special rapporteur on mercenaries in a March report. War allowed a slew of diseases to flourish, including bubonic plague, hemorrhagic fever, polio, and cholera. AIDS emerged as the leading cause of death in Africa.

In West Africa the internal conflicts within Sierra Leone, Liberia, and Guinea continued to spill over the borders, further destabilizing the region. In Sierra Leone, the January offensive by rebels against the capital, Freetown, marked the most intensive and concentrated period of human rights violations in Sierra Leone's eight-year civil war. Liberia and Burkina Faso were once again accused by the U.N. and others of fueling the war, by supplying weapons to the rebels and allowing them to use bases outside Sierra Leone for attacks. The Revolutionary United Front (RUF) rebels deliberately targeted civilians, against whom they committed unspeakably brutal abuses. Nigerian and other soldiers with the ECOMOG West African peacekeeping force and government-backed civilian militias also committed serious abuses, although on a lesser scale. International pressure and stalemate in the war led to a May cease-fire and a July 7 peace agreement signed in Lom6, Togo. On October 22, the U.N. Security Council approved the U.N. Mission in Sierra Leone (UNAMSIL). The operation, given an initial six month mandate, authorized the deployment of a 6,000-member U.N. peacekeeping force. UNAMSIL's mandate, under the U.N. Charter's chapter VII, included assisting the disarmament and demobilization process, ensuring the security of U.N. civilian personnel, assisting the delivery of humanitarian aid, and providing support for the new elections.

In Liberia, growing violence and insecurity threatened to reverse the tenuous peace established since 1997 after the end of the brutal seven-year civil war. Only two years after the U.N.-sanctioned election that brought Charles Taylor to power, the situation remained fragile and increasingly volatile. In August, the fighting intensified when rebels seized the towns of Kolahun and Voinjama in Lofa County, northern Liberia, killing hundreds and forcing thousands of Liberians and Sierra Leonean refugees to flee the area. U.N. warehouses and vehicles were looted and aid workers were evacuated. Nine hostages, including six foreign aid workers, were kidnapped during a border attack in Kolahun and held for several days before being released.

The sixteen-year civil war in Sudan that had killed an estimated 1.9 million people continued in the south, the east, and the Nuba Mountains in central Sudan, between government and the National Democratic Alliance (NDA), a 1995 coalition of armed opposition movements including the Sudan People's Liberation Movement/Army (SPLM/A), the southern-based rebel group that has fought the government since 1983. In 1999, the government of Sudan became for the first time an oil exporter. The oil came from the south, and its development was made possible by a peace agreement with the southern faction in the area with the richest oil reserves-and by a government policy of displacing civilians from the oil fields. One government minister, swiftly contradicted by a colleague, admitted that the new oil production would be used to finance the war. The government persistently bombed civilian property and relief sites, killing and injuring civilians and destroying scarce infrastructure. Government-backed armed militias continued to mount raids in which civilians were taken as slaves-and evidence began to surface that efforts by western Christian organizations to redeem slaves at U.S.$50 a head were funding a profitable business. The SPLA committed its own share of abuses: summary executions, including the March execution of three captured government employees and a Red Crescent tracing officer; diversion of relief and other food; and the enlistment of child soldiers. The only major glimmer of hope was the grassroots People-to-People reconciliation process that sought to end the debilitating south-south conflicts.

Estimated to involve 200,000 troops and to have cost U.S.$300 million, the Ethiopian-Eritrean war that started on May 6, 1998, persisted despite OAU, U.N., E.U., and U.S. efforts to rally the two sides around a framework agreement calling for a truce and Eritrean withdrawal from land occupied since the start of the conflict. The fighting was reported to have claimed as many as 50,000 dead and displaced hundreds of thousands of people.

Africa's third largest nation, the Democratic Republic of Congo, had been at renewed war since August 2, 1998, when Rwanda and Uganda invaded the country in alliance with disgruntled Congolese rebels. Zimbabwe, Angola, and Chad sent troops to defend President Laurent Kabila's government. Chad had since withdrawn and Angola had significantly reduced its commitment. Throughout the year, the DRC conflict continued to present the biggest security crisis in the continent, contributing to the worsening of the humanitarian situation in much of central and southern Africa. But, after protracted negotiations, the principal belligerents signed a shaky peace pact in Lusaka, Zambia, on July 14. There were few illusions that progress towards implementation of the Lusaka pact would be anything other than slow and painful. Even if the war did not resume, it would take decades for the area to gain a place among the more peaceful and prosperous parts of the continent.

The DRC crisis was compounded by two developments. First, an extraordinary deterioration in the state of Rwanda-Uganda relations suddenly precipitated a shooting battle between the two erstwhile allies. The original geopolitical aims and specifically the much-vaunted strategic partnership between Rwanda and Uganda seemed to have been replaced by a contest for regional supremacy. Secondly, it appeared that the DRC conflict was not just sucking in regional powers but sucking militia fighters out, as the conflict increasingly commingled with the internal conflict in Burundi.

Angola's two-decade civil war continued to drag on throughout the year without resolution in sight. The return to all-out war in December 1998 also represented the end of the uneasy peace process that began with the Lusaka Protocol in Zambia in November 1994. It was a peace process overseen by two U.N. peacekeeping missions, at a total cost to the international community of U.S.$1.5 billion. The renewed war looked set to be more vicious with both sides dug in for ferocious battles. The human cost since fighting resumed was impossible to determine with precision, but the United Nations estimated that nearly one million people were internally displaced because of the renewed conflict, 10 percent of Angola's population.

The Casamance crisis in Senegal continued throughout 1999. At the start of the year, the Movement of Democratic Forces of Casamance (MFDC), a secessionist movement fighting for the independence of the southern Senegalese region of Ziguinchor, demanded the unconditional release of all conflict-related prisoners prior to discussion. On January 22, Senegalese president Abdou Diouf visited Casamance, where he met with Father Diamacoune Senghor, the secretary-general of the MFCD. Three weeks later, President Diouf's government released 123 prisoners. At the end of April and May violence erupted in the Casamance with several government soldiers and rebels killed in each incident.

The leaders of the MFDC met in Banjul, Gambia from June 22-24 and issued a communique demanding the "immediate withdrawal" of all Senegalese forces from Casamance, except those posted there before the conflict erupted in 1982. Rebels abducted about ten people, including civilians and soldiers, on August 13.

There were other less publicized violent conflicts which were no less devastating in Congo-Brazzaville, Burundi, Uganda, and Somalia. In the Republic of Congo, the fighting between rebel and government troops continued throughout 1999 in and around Brazzaville. The fighting claimed thousands of lives, but no exact numbers were known. The fighting had also created a humanitarian disaster in the Pool, Niari, Bouenza, and Lekoumou areas, with a combined population of roughly one million, as tens (possibly hundreds) of thousands of civilians fled into the forest to escape the fighting but were reported to be starving to death.

With negotiations among parties to the civil war in Burundi largely stalled, both Burundian security forces and rebels murdered, raped or otherwise injured or drove civilians from their homes. In mid-August, government soldiers killed 147 civilians in one place and seventy-four soon after in another location, both in Bujumbura-Rural Province. At the end of August, rebels killed thirty-eight civilians and the army retaliated by slaying twenty others. The Burundian army was reported to have stepped up counterinsurgency operations to counter rebel attacks, including forcing at least 200,000 villagers in Bujumbura-Rural into makeshift camps without food or water. In one week alone at the end of September, aid officials and displaced villagers said that at least one hundred villagers had died of disease in the squalid camps. The war within Burundi also became more closely linked to conflict in the Congo (DRC), as rebel forces linked up with others fighting in the neighboring country.

The Chadian government simultaneously sought a military solution to the armed rebellion in the north of the country led by former defense minister Youssouf Togoimi's Movement for Democracy and Justice in Chad, while denying that it existed. There were several clashes between government forces and rebels throughout the year.

Somalia continued to be divided among rival clans, and lacked a central government, though the self-declared state of Somaliland in the north enjoyed comparative stability. Violent periodic upsurges in fighting continued to take a heavy toll on the civilian population, and the September 26 murder of one of Somalia's best-known humanitarian workers highlighted the difficulty of bringing peace to the war-ravaged African nation. Doctor Ayub Sheikh Yerow, one of UNICEF's leading health and medical workers, was killed on September 15 when his vehicle was ambushed on the outskirts of the agricultural town of Jowhar. Both Ethiopia and Eritrea were reported to have supplied arms to different factions in the conflict.

Combat between the government army and rebel forces continued in northern and western Uganda, leaving local populations exposed to critical shortages of food, medicine and shelter. The inability of international aid agencies, including the World Food Program, M6decins Sans Fronti4res, and Action Aid, to continue their life-sustaining humanitarian activities in the affected areas severely aggravated the humanitarian disaster.

The Human Fall-Out

The commemoration in 1999 of the thirtieth anniversary of the OAU's Refugee Convention also marked the ignominious fact that Africa hosted the second largest refugee population worldwide. In 1998, the global number of people of concern to the United Nations High Commissioner for Refugees (UNHCR) was reportedly 21.5 million, of whom 6.3 million were in Africa. Of the ten top refugee producers in the world, five were African: Burundi, Eritrea, Sierra Leone, Somalia, and Sudan. Africa also had some of the largest populations of internally displaced persons (IDPs). Sudan alone had approximately four million IDPs-the largest IDP population in the world. Angola's IDP population stood at some 1.6 million, of whom one million people were displaced in 1999. And one million people were estimated to have been displaced in Sierra Leone.

Some of the longest and most forgotten refugee crises were on the African continent, with recurring refugee movemes caused by conflicts spilling over into neighboring countries. Refugee crises in Africa invariably affected a whole subregion-and sometimes beyond. The Great Lakes crisis continued to spill over into eastern and southern Africa. The Horn of Africa countries continued to be producers and receivers of refugees simultaneously. And in West Africa, the interlocking conflicts in Sierra Leone, Liberia, and Guinea affected populations in all three nations. Ethnic minorities in Ethiopia and the Democratic Republic of Congo were subjected to harassment and even deportation on the basis of ethnicity, even where those deported were born and were active citizens of the expelling country.

Security and protection of refugees and internally displaced populations was one of the most serious problems in Africa. There was an alarming increase in the militarization of refugee settlements by armed elements, weapons flows, cross-border attacks, forced recruitment of refugee children, and attacks on refugee women and children in camps. In many African countries, refugee camps did not provide a safe haven. For example, in the Forecariah area in Guinea, there were five attacks by Sierra Leonean rebels on the refugee camps during 1999. The lack of an adequate response by African governments and the international community to separate out combatants from refugees in the camps exacerbated the problem and made refugee camps more likely targets for attack.

The security risk increasingly associated with hosting refugees from intractable regional conflicts resulted in a growing unwillingness by host governments to provide asylum and protection. Xenophobia and anti-refugee sentiment was increasingly prevalent on a continent with a generous history of hosting those fleeing conflict. Host countries sought ways to restrict freedom of movement and residence to refugees. Tanzania, host to the largest number of refugees in Africa and long known for its generous asylum policies, in 1998 passed a more restrictive refugee law and conducted forced round-ups confining Burundian and Congolese refugees to camps. In Kenya, refugees largely from Somalia, Democratic Republic of Congo, Burundi, Rwanda, and Sudan were regular targets of police harassment, forced round-ups, relocation to rural camps, arbitrary detention, and deportations. Despite these worrisome developments, both Tanzania and Kenya continued to host some of the largest refugee populations.

Defending Human Rights

The year saw the continued emergence and evolution of citizens' organizations working for human rights, providing Africans with important channels to monitor governments, defend their rights, and demand sustainable political, constitutional, and legal reforms.

In South Africa, the country's vigorous human rights community benefitted from an environment of respect for democracy and human rights, and freely monitored the government, despite occasional government hostility to NGOs. Nigeria too provided a vastly improved situation, which permitted the country's numerous and sophisticated human rights groups to operate freely throughout the year, in welcome contrast to the repression under the government of General Abacha. The work of the Transition Monitoring Group (TMG), a coalition of tens of NGOs which deployed more than 10,000 election observers throughout the country for the various stages of the election process, was particularly impressive.

In a positive development, after eight years of obstruction, the Ethiopian government in early May officially registered the Ethiopian Human Rights Council (EHRCO), the only monitoring group working openly in the country. EHRCO was also able to access its bank account which was frozen by the government during the preceding four years, but only after obtaining a court order for its release in January. The government continued to recognize several other organizations focusing on civic and human rights education.

However, in some countries, efforts to create a more decentralized civil society that could support an agenda of political and economic change continued to be stifled by legal and administrative regimes that put NGOs firmly under state control.

In contrast to its decision to register the Ethiopia Human Rights Council, the Ethiopian government continued to suppress the Human Rights League. Eight founding and board members of the league, and the organization's secretary, remained in detention for the second year after their arrest in October 1997. Similar repressive measures forced other monitoring groups underground or into exile, including the Ogaden Human Rights Committee, the Solidarity Committee for Ethiopian Political Prisoners, and the Oromo Ex-Prisoners for Human Rights.

The government of Burkina Faso was also on the offensive against local human rights activists who conducted a vigorous campaign for a trial for the killers of journalist Norbert Zongo. On April 6, the government withdrew diplomatic status from Halidou Ou6draogo, leader of the Burkina Faso branch of the forty-nation Inter-African Human Rights Union (UIDH), because he had "conducted activities that were not compatible with his status." The decision deprived the human rights leader, who is a citizen of Burkina Faso, of diplomatic immunity from prosecution and denied the organization diplomatic tax benefits. It also eliminated diplomatic tax benefits for the group. Three figures critical of the government were detained on May 17, 1999: Herman Yam6ogo, leader of the Alliance for Democracy and Federation-African Democratic Rally (released on May 20); Nana Tibo of the Sankarist Party; and Halidou Ou6draogo, also chairman of the Burkinab6 Human Rights Movement (MBDHP), and of the Collective of Opposition Labor Unionists and Members of the Civil Society (released on May 17). Yameogo was charged with inciting violence.

Fernando Gomes, president of the Human Rights League of Guinea-Bissau and vice-president of the national chapter of the F6d6ration International des Droits de l'Homme (FIDH), and Luis Nancassa, President of the Teachers Union and a member of organizations affiliated with both FIDH and the Organisation Mondiale Contre la Torture (OMCT), were mentioned on the radio on June 12, 1999, in statements by the military warning civil society leaders critical of the recent coup d'6tat.

Belying professions of openness and receptivity to civil society, the Ugandan government continued to control civil society groups through the manipulation of registration requirements requiring NGOs to be nonsectarian and nonpolitical. The government continued to refuse to register the Ugandan National NGO Forum, a broad consortium of national and foreign NGOs, and declared its May 1999 second general assembly "unlawful." Congolese human rights activists who were forced to flee to Uganda complained that security operatives from the Ugandan-backed Congolese Rally for Democracy (CRD) harassed them and kept them under surveillance in Kampala.

In Zambia too, the media in August carried reports of government plans to introduce stiffer legislation controlling NGOs, replacing the 1958 Societies Act. Following the May World Bank Consultative Groupmeeting in Paris the then Finance Minister Edith Nawakwi attacked NGOs, without mentioning their names, for campaigning against Zambia's efforts to secure donor funding. The government-controlled print media named the Zambia Independent Monitoring Team (ZIMT) and AFRONET. But the Zambia Independent Media Association (ZIMA) defended NGO initiatives noting that "the position of NGOs has always been consistent, clear and transparent."

Conditions for human rights activists were even worse in Liberia, Togo, Djibouti, and Cameroon, where activists were subjected to abuses including detentions, torture, and mutilations. In Liberia threats and intimidation against human rights groups increased in 1999. Like their Zambian counterparts, they were scapegoated for a freeze in donor aid. In February, the Catholic Justice and Peace Commission was attacked by politicians for publicizing wrongdoing by security forces, poor treatment of prisoners, and forced labor and child captivity in southeastern Liberia. In March, legislators from four countries took two nongovernmental human rights groups, the Catholic Justice and Peace Commission and the Fore-Runners of Children's Universal Development (Focus), to court on the grounds that the reports released by these groups were making it difficult for Liberia to receive international donor aid. In July, over one hundred former combatants stormed and looted the house of Commany Wesseh of the Center for Democratic Empowerment after he appeared on a radio talk show stating that the Liberian government, and not the U.N., was responsible for the reintegration of combatants. In July, an army colonel cautioned human rights activists, accusing them of sending "malicious and negative signals" to the international community. In April, unidentified men forced off the road the chauffeur of a human rights activist from the National Human Rights Center of Liberia, dragged the driver from the car, beat him up for half and hour, and then cut off one of his ears.

In Togo, Nestor Tengue, Francois Gayibor, and Brice Santanna, members of the Togolese Association for the Defense and Promotion of Human Rights (ATDPDH), were arrested on May 3 on suspicion of providing Amnesty International with information for a report detailing summary executions during political unrest in 1998. Antoine Koffi Nadjombe, a member of the Togo section of Amnesty International was arrested on May 14. The government had also attempted to arrest Arsene Bolouvi and Benjamin Adjoh members of ACAT (Action for Christians Against Torture)-Togo. Ameen

Ayodele, a member of Amnesty International's Nigerian Section, was detained, tortured, and threatened with execution by Togolese security forces between May 19 and 27. Ayodele was traveling from Ghana to Nigeria via Togo on May 19. At the border post of Aflao between Ghana and Togo, he presented his Amnesty International membership card to the Togolese security forces as a means of identification, because all his other documents, including passport, had been stolen. The border police arrested him on suspicion of being "a spy" for Amnesty International in advance of Secretary-General Pierre San6's scheduled visit to Lom6 on May 21, 1999. San6's visit was subsequently canceled by the Togolese authorities. Ameen was to spend the next nine days in a cell, naked and deprived of food. He was beaten every day, as the Togolese authorities interrogated him about his involvement with Amnesty International in Togo.

The government of Benin became involved in this issue when two Benin-based human rights organizations issued contradictory statements regarding Amnesty International's report on Togo. Benin's government-funded national Human Rights Commission sided with the Togolese government; while the Benin Human Rights League stated that the dead bodies of Togolese dissidents did wash up on the beaches of Benin, as alleged by Amnesty International. On July 23 the government of Benin publicly asked for proof about locations where dead bodies of Togolese nationals were buried.

Abdoulaye Math, lawyer and president of the Movement for the Defense of Human Rights, a human rights group based in Maroua, the Far North Province of Cameroon, was arrested on February 27, 1997, after he had boarded a plane for Yaound6. He was traveling to the United States to attend a human rights training program and had just returned from Garoua, where earlier in the week he had organized a conference on human rights abuses in northern Cameroon. Math was charged with fraud and selling pharmaceuticalproducts without a licence. As of this writing, he reportedly remained in detention in the central prison in Maroua, pending review of his case.

Djibouti's most prominent human rights defender, Aref Mohamed Aref, was refused the return of his passport, which prevented him from attending an Amnesty International meeting in Dakar, Senegal, starting on 28 June. His passport was seized in December 1998 as he was about to depart for Paris to attend the World Human Rights Defenders Summit. Aref, a lawyer, was released early from a six-month prison sentence in May by the new president of Djibouti, Ismail Omar Guelleh. A well-known nonviolent critic of the government who had defended political prisoners, Aref had been imprisoned in February, shortly before the presidential election, on a criminal charge in connection with a business matter in 1994. The trial appeared to have been politically motivated and unfair-he was denied the defense counsel of his choice, there were numerous irregularities with the process, and his appeal was thrown out by the Supreme Court in a brief session with no advance notice or consultation with his legal representative. The Supreme Court also banned him from legal practice for five years, a judgment which he challenged in court.

And in Sudan it was a case of zero tolerance-no independent human rights organization existed in openly government-controlled areas, though independent attorneys continued to defend those few put on trial and churches attempted to defend their parishioners' rights. One independent attorney defending human rights cases was jailed four times during the year. The Dinka committee retrieving enslaved Dinka children was an underground human rights organization until it was incorporated into a government committee on abductions, set up following the 1999 session of the U.N. Commission on Human Rights, at which a consensus resolution on Sudan, making no mention of slavery, had been adopted. There were no human rights organizations in southern rebel-held areas, though nascent human rights groups monitoring abuses in the Nuba Mountains and in eastern areas under rebel control continued to develop.

Regional Organizations

Organization of African Unity (OAU)

The state of the continent offered a fine moment for the premier continental organization to deal more effectively with eruptions of violence and their associated human rights abuses. Yet the OAU policy leadership vacuum continued. Africa's major conflicts in Angola, DRC, Sierra Leone, and Ethiopia-Eritrea underlined the message that the OAU-a captive of a long legacy of institutional torpor and an inclination for weak compromises-would never become more effective unless it ceased to be a mere debating society. The challenge for South Africa and Nigeria would be to provide regional leadership for a more focused, decisive, and principled organization.

In the midst of multiple conflicts on the continent throughout the year, the OAU summoned or convened several meetings, issued several statements, launched a variety of initiatives and deployed numerous special envoys to flashpoints. An extraordinary summit was called for March in Ouagadougou to discuss "all the conflicts" on the African continent. Chief among these were said to be the conflicts in Congo-Brazzaville, the Democratic Republic of Congo (DRC), and Sierra Leone. The special two-day summit was, however, canceled, and a press statement from Burkina Faso's presidential office explained that it had not been possible "to reach a quorum necessary to hold a special summit."

The thirty-fifth annual summit of the OAU took place in Algiers in July. The three-day meeting, which was to be devoted to the search for solutions in armed conflicts and for mechanisms to avert wars on the African continent, was attended by forty-six heads of state and government. Its most notable resolution was a call for the exclusion of any government installed by military coup from the organization, as stipulated in its Harare Declaration of 1997. The widespread lack of mechanisms for the peaceful transfer of power, which observers believed to be a major contributing factor to the prevalence of military coups on the continent was not addressed. Moreover, it was ironic that a number of the African leaders present at thesummit had not ascended to power through the ballot box. The resolution would come into effect thirty days after fifteen of the OAU's fifty-three member states had signed and ratified it.

Finally, the fourth extraordinary summit of the OAU was held in Syrte, Libya where forty-four African leaders decided to form a continental union to face the challenges of globalization and development. The Syrte Declaration stated that the member states of the OAU were committed to the setting up of an African Union, in conformity with the ultimate objectives of the OAU Charter and the provisions of the treaty establishing the African Economic Community. Many states expressed skepticism at this goal in private. Libya presented a check for U.S.$4.5 million to clear the contribution arrears of seven states to the OAU so that no one would be deprived of the right to speak. The debtor nations helped were Comoros, Guinea-Bissau, Equatorial Guinea, Liberia, Niger, S(o Tome and Principe, and Seychelles.

On Sierra Leone the OAU's record was not illustrious. Though it offered to facilitate a dialogue between the government and rebels, and expressing its "unyielding support" for the government of President Ahmad Tejan Kabbah, the OAU failed to insist that impunity for human rights should end. OAU Secretary-General Salim Ahmed Salim paid tribute to the mediation efforts of Togolese president Gnassingbe Eyadema and other parties involved "in the search for a lasting solution to the unfortunate conflict in Sierra Leone," but proceeded to "morally guarantee" the Lom6 peace agreement that included a blanket amnesty for all abuses committed prior to its conclusion.

Apparently fearing to displease either side to the conflict in the Democratic Republic of Congo, the OAU and its secretary-general abdicated responsibility and retreated into the background, leaving President Chiluba of Zambia, acting on behalf of the Southern Africa Development Community and with the support of South Africa, to plod through mediation that finally led to the signing of a shaky peace agreement.

On Angola the OAU was seemingly content with high-level missions: one headed by Assistant Secretary-General Ahmed Haggag, who left Addis Ababa aiming to reconcile differences between Angola and Zambia; the other by the OAU secretary-general, who met Angolan President Jose Eduardo dos Santos to discuss the renewed war. Secretary-General Salim also made the customary appeal to the international community to provide humanitarian assistance to Angola to alleviate the plight of the population.

The OAU's efforts through its mediation committee on the Ethiopia/Eritrea dispute-Burkina Faso, Djibouti, and Zimbabwe-backed by the OAU's Central Organ for Conflict Prevention, Management and Resolution, were relatively more robust and intensive. Having developed a "framework agreement" on resolving the border dispute, throughout the year the organization urged both parties to stop fighting immediately in order to give the agreement a chance. The plan included calls for an end to hostilities and the deployment of peacekeeping forces in the contested areas until a new border delineation was decided. At the time of this writing, only Eritrea had accepted the terms of implementation. In early September, Ethiopia rejected the terms of the agreement, saying they contradicted the original formula to end the war. Eritrea called the rejection "tantamount to a declaration of war," and in an address to the U.N. General Assembly on October 1, Eritrea's foreign minister urged the United Nations and the international community to condemn Ethiopia's threat to use force, to establish a short time frame for Ethiopia to respond to the peace package, and to immediately start implementing the OAU plan.

To its credit, the OAU held its first Ministerial Conference on Human Rights in Mauritius in April, preceded by a meeting of experts at the same venue. The conference reviewed the human rights situation in Africa, examined the root causes of human rights violations, and elaborated a collective vision for the future, laid out in a Declaration and Plan of Action adopted at the conference. African NGOs were not invited to the conference venue, despite lobbying for their contribution to be heard, though an NGO forum was convened by the International Commission of Jurists on behalf of the OAU and African Commission on Human and Peoples' Rights in Nairobi, Kenya, prior to the ministerial conference, and fifteen NGO representatives were elected and attended the OAU conference as observers.

The conference was held less than a year after the adoption of a protocol to the African Charter on the establishment of the African Court on Human and Peoples' Rights. The protocol was adopted by the 34th Ordinary Session of the Assembly of Heads of State and Government held in Ouagadougou, Burkina Faso, in June 1998, and which was signed immediately thereafter by thirty African States. The protocol, which to date had been ratified by two member states, Burkina Faso and Senegal, will enter into force after the deposit with the OAU Secretary General of fifteen instruments of ratification.

But at the time of this writing none of this activity seemed to have yielded dividends and the year's experience was dominated by disjointed and ineffective initiatives; especially those aimed at conflict resolution in Sierra Leone, Ethiopia/Eritrea, DRC, and Angola. The sorry state of the OAU once again highlighted the need for the development of a coherent workable strategic concept and policy with the requisite leadership.

The ability of Africa to act effectively in such cases as the war in the DRC required strong leadership. But even the most capable individuals would probably be handicapped unless OAU institutions were more effective. Some straightforward, though controversial improvements were needed. Two samples: member states ought to force reform of the secretariat, that so often managed to unite the continent only in disillusion; and member states should also accept more continuity in the chairpersonship, halting the annual rotations of leadership, even at the cost of every country not having a regular turn.

Southern African Development Community (SADC)

Following the South African-led intervention in Lesotho in late 1998 that could at best be described as seriously flawed, the year was better for SADC than the previous one. After the earlier years of a miscued foreign policy, South Africa started to clarify its identity and role in Africa and to develop a more coherent Africa policy framework. On taking office, President Mbeki appointed the outspoken and effective-though undiplomatic-former health minister Nkosazana Zuma as minister of foreign affairs, to replace the apparently absent Alfred Nzo. Mbeki and Zuma were both involved in attempts to broker peace in the DRC, and South Africa stated that it was prepared to send troops to the DRC as peacekeepers under certain conditions.

One of the most overt manifestations of this shift was that South Africa's battered relations with Zimbabwe seemed to be on the mend, boosting prospects for regional integration to operate as an engine of development, democratization, and peace. Progress was threatened, however, by Zimbabwe's heightening internal crisis, and in particular by its continued intervention in the war in the DRC.

One of the many causes of mistrust that defined South Africa's relationship with Zimbabwe and to a certain degree other SADC states, was limited access to South African markets. In September 1999, the government asked the South African parliament to ratify a ground-breaking regional free trade deal so it could come into effect at the start of the new millennium. The deal covered the nearly U.S.$6 billion of trade between South Africa and the other thirteen members of SADC. The other major cause of mistrust-SADC's Organ on Politics, Security, and Defense-appeared to have been resolved. Although SADC states agreed in 1996 to set up the organ, they had never been able to agree its mandate or a legal framework for it. A draft protocol, drawn up in 1997, was never ratified by SADC member states. The situation was further compounded when President Mugabe, as chairperson of the organ, committed troops in the Congo war in the name of SADC without prior consultation with all the other members of SADC. But at the August 1999 annual summit in Onlineuto, President Mugabe's chairmanship of the organ was reconfirmed, subject to the understanding that he would not act in its name without first consulting President Thabo Mbeki of South Africa, President Joaquim Chissano of Mozambique, and President Sam Nujoma of Namibia; respectively, the past, present, and future chairs of the SADC.

In 1999, SADC member states made important contributions to the early establishment of the International Criminal Court (ICC). While Senegal became the first state to ratify the treaty in February1999, SADC member states worked together to accelerate ratification in the sub-region. In July 1999, the South African Ministry of Justice convened a meeting in Pretoria for representatives of SADC states to discuss ratification in the region. The session developed a Model Enabling Act to guide states in drafting implementing legislation as well as a Statement of Common Understanding setting out their commitment to ratification. At the February and July-August sessions of the ICC Preparatory Commission, individual officials from SADC states assumed major responsibilities confirming their roles as prominent participants in the process.

Economic Community of West African States (ECOWAS)

ECOWAS, particularly through its defense organ ECOMOG, was the most important frontline actor in most trouble spots of its subregion. As ECOMOG wound up its activities in Liberia, its role in Sierra Leone grew, signaling that the regional peace-keeping force, originally created for the Liberian conflict, was likely to remain in existence for the foreseeable future. After suffering a series of setbacks in Sierra Leone in December 1998 and January 1999, ECOMOG troops regained control of Freetown from rebel forces, whom they pushed further east until the signing of a cease-fire on May 18. The ECOWAS chair, Togolese President Eyadema, and ECOWAS foreign ministers played an important role in brokering peace talks among Sierra Leone warring parties culminating in the signing of the Lom6 peace accord in July. ECOWAS was also named as one of five moral guarantors for the agreement. The accord itself called for the transformation of ECOMOG's mandate from military intervention to peacekeeping; and for ECOMOG and the U.N. to be responsible for the disarmament and encampment of all ex-combatants. Nigeria, under mounting domestic pressure to reduce its financial and troop contribution to the Sierra Leone conflict, insisted that the United Nations either transform the ECOMOG force into a U.N. peacekeeping force or financially support any continued ECOMOG presence in Sierra Leone. On October 22, as part of the U.N. Mission in Sierra Leone (UNAMSIL), the Security Council authorized a 6,000-member U.N. peacekeeping force for Sierra Leone. ECOMOG forces would continue to provide security around Freetown even after the U.N. force was deployed and would work alongside UNAMSIL in disarming the warring factions.

Elsewhere ECOWAS was active on Niger and Guinea-Bissau. A May ministerial meeting discussed the situation in Niger, condemning the military coup in which President Mainassara was assassinated; stressing the need for an independent inquiry; pledging to support a transition process; recommending that ECOWAS' executive secretary should participate in an election process; and generally agreeing to assist Niger to restore constitutional order. In November 1998, a peace agreement to end the rebellion of General Ansumane Mane against President Vieira of Guinea-Bissau was signed at an ECOWAS summit in Abuja. The parties also agreed to the deployment of a 600-strong ECOMOG force. In May 1999, ECOWAS ministers agreed further measures concerning Guinea-Bissau: ECOWAS condemned the coup against ex-President Vieira and associated killing, looting, and destruction of property; requested safe passage for ex-President Vieira; thanked ECOWAS member states who supported ECOMOG operations in Guinea Bissau; formally withdrew ECOMOG from Guinea-Bissau; and agreed to monitor the situation. Heads of state of six ECOWAS countries met in September to discuss border frictions between Liberia and Guinea and to plan a meeting of the Mano River Union (Guinea, Liberia, and Sierra Leone) in November to address mutual security issues. ECOWAS also continued to discuss the creation of a permanent structure for conflict prevention and resolution, with ECOMOG as its intervention force.

The Role of the International Community

Indifferent to a Continent in Pain

For the better part of the year, Africa appeared to have slipped off the world map. Crisis after crisis failed to attract the attention and serious concern of the international community. On those occasions whenAfrican issues registered on the radar screens of key decision makers and the media, the international community's response was belated and weak. When invoking the much-abused mantra "African solutions for African problems" the international community often insinuated that the non-African world should not intervene in so-called complex African problems, neglecting to recognize that though many African problems were African-made, others were colonial and cold war leftovers for which Africans could not be held exclusively responsible, and yet others were fueled if not caused by the developed world's hunger for Africa's rich mineral resources.

In great contrast to the new emphasis on accountability for human rights violations in the conflicts in Kosovo or East Timor, in Africa the international community either remained silent on war crimes or took actions that were clearly inimical to the rule of law and human rights. In the case of Sierra Leone, the international community facilitated an agreement that provided a blanket amnesty for all atrocities committed during the eight-year civil war. Although the U.N. secretary-general's special representative Francis Okelo included a hand-written reservation to the Lom6 accord, stating that the U.N. would not recognize the amnesty as applying to "international crimes of genocide, crimes against humanity, war crimes, and other serious violations of international humanitarian law," this reservation was not reinforced by a Security Council resolution. The danger was that the Lom6 peace agreement would serve as a benchmark for conflict resolution elsewhere in Africa, inviting further violence in the face of such impunity. The dangers of such an approach were demonstrated in Liberia, an example of how incomplete and flawed interventions that bypassed accountability in the interests of peace were ultimately shortsighted. Two years after an internationally-endorsed peace process and election that ignored accountability for human rights violations, Liberia was threatened with a return to conflict, largely founded on unresolved issues from the previous civil war.

It was another bad year for Africa's refugees, many of whom subsisted without adequate assistance or protection. It seemed axiomatic that international efforts to assist refugees and seek solutions to their plight should be equitable and based on human need, regardless of the nationality, race, geographic, political, or military importance of the refugee population. Yet no African refugees received anything near the outpouring of international concern and assistance demonstrated during the Kosovo crisis. One estimate calculated that the international community spent U.S.$0.11 per refugee per day in Africa and an equivalent $1.23 per refugee per day in the Balkans. The international community spent $10 million per week on Kosovar refugees in neighboring Albanian and Macedonia. Meanwhile, in West Africa, a UNHCR annual appeal for $8 million only raised pledges of $1.3 million.

Many of the protection problems in the Balkans were identical to problems in Africa, such as location of camps too close to borders, but the international response was vastly different. In northern Albania, for example, UNHCR, rightly recognizing the serious risks to the security of refugees in the border areas, expeditiously embarked on a well-funded operation to move refugees away from the border. This scenario contrasted starkly with the situation in Guinea, where for the previous year and a half refugee camps had been located too close to the border with Sierra Leone and had been the target of repeated cross-border attacks and military incursions, during which refugees had been killed, abducted, and mutilated. For over a year, nongovernmental organizations had been calling on UNHCR to relocate refugee camps away from the border. In February 1999 UNHCR requested U.S.$6 million to move the refugees away from the border, but by July the organization had not received any contributions toward this appeal. Again, although the U.K. and World Bank promised money to support the disarmament process in Sierra Leone, others failed to match these pledges, which in any event compared poorly to other commitments. The U.K., asked to deploy peacekeeping troops to Sierra Leone said that it was fully committed in the Balkans, but subsequently found it possible to send 250 Gurkhas to East Timor.

United Nations

At the end of September, U.N. Secretary-General Kofi Annan presented a report to the Security Council, following up a report submitted eighteen months earlier on how to achieve peace and sustainable development in Africa. The report chronicled Africa's crises, but also "dramatic changes for the better," noting progress in South Africa, Mozambique, Nigeria, Liberia, Mali, and Algeria. The secretary-general called for the U.N. to give as much attention to Africa as to crises in other parts of the world.

The Security Council failed to respond to the RUF January offensive against Freetown, Sierra Leone, in which two to three thousand people were killed, and then failed again for months to adopt a resolution on the deployment of a peacekeeping force to Sierra Leone, despite ongoing cease-fire violations and the clear need for the international community to act quickly to ensure the Lom6 accord did not break down. On October 22, the U.N. Security Council approved the U.N. Mission in Sierra Leone (UNAMSIL). The operation, given an initial six month mandate, authorized the deployment of a 6,000-member U.N. peacekeeping force. UNAMSIL's mandate, under the U.N. Charter's chapter VII, included assisting the disarmament and demobilization process, ensuring the security of U.N. civilian personnel, assisting the delivery of humanitarian aid, and providing support for the new elections. There were long delays too in Angola. Following the U.N.'s pull-out in February from Angola the Security Council finally approved on October 15 a six month follow-on mini-U.N. operation of thirty personnel in Angola: over half of the staff were designated as human rights specialists.

International Financial Institutions and Donors

Backed by a Group of Seven (G-7) agreement in June in Cologne to a complete overhaul of the system to accelerate debt relief, the IMF and World Bank announced an enhanced coordinated effort to support "deeper, broader and faster debt relief" so creating a "virtuous circle of debt relief, poverty reduction and economic development" for the world's poorest countries-the forty-two Highly Indebted Poor Countries (HIPC). The new program, intended to erase up to U.S.$100 billion in debt, forgiving 90 percent of the total, would replace an extensively criticized 1996 initiative. Because of exacting performance criteria, only two African countries, Uganda and Mozambique, had received any relief under the HIPC program three years following its launch. By relaxing the requirements for qualification, the new plan sought to allow three-fourths of the eligible countries into the program by the end year 2000. The eligible countries would include Benin, Burkina Faso, Burundi, Cameroon, Central African Republic, Chad, Republic of Congo, CLte d'Ivoire, Democratic Republic of the Congo, Ethiopia, Ghana, Guinea, Guinea-Bissau, Guyana, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Niger, Rwanda, Sao Tome and Principe, Senegal, Sierra Leone, Somalia, Sudan, Tanzania, Togo, Uganda, and Zambia.

In a September 29 offer which was more generous than the G-7/IMF/World Bank announcement, U.S. President Bill Clinton proposed to wipe out 100 percent of U.S. debt carried by poor countries that were moving to overhaul their economies and struggling to provide basic needs. British Chancellor of the Exchequer Gordon Brown indicated that Britain was also prepared-on a case by case basis-to go further than 90 percent, possibly up to 100 percent, where debt relief would finance poverty relief. Debt relief advocates opined that with the United States and the Britain both willing to forgive 100 percent of debts, the pressure would mount on the remaining G-7 nations-France, Japan, Germany, Canada, Italy-to make comparable commitments.

On the negative side, donors continued to deploy debt relief and aid inconsistently to encourage support for human rights, the rule of law, and democratization. In some cases, donors prioritized and compartmentalized corruption and economic reform issues as distinct from political accountability and other rights issues. Other donors seemed to reject the "full belly" thesis that civil and political rights were luxuries that could be put aside until the economy reached a certain degree of success, and acknowledged that meaningful exercise of economic and social rights in fact required principled protection of civil and political rights. But many had yet to take the next step to fully incorporate these components in tangible andconsistent ways into their own operating procedures. Many also appeared hesitant or unprepared to fully address the difficulties that must accompany the task of defending the universality of human rights. Only one thing was clear: "human rights, democracy, and good governance" became increasingly popular terms in donor rhetoric.

The British Foreign and Commonwealth Office began publishing annual reports jointly with the Department for International Development in 1998. The FCO addressed the full belly thesis specifically. The 1999 report juxtaposed the insight on the interdependence of rights that the framers of the Universal Declaration imagined with the Cold War's narrow, polarized conception: "it was by working for both sets of rights-for full bellies and for free minds-that they sought to lay the foundations for a more peaceful post-war world." The cold war polarization carried over into north-south divisions. "The British Government is committed to redressing the imbalance" between civil and political and economic, social, and cultural rights, holding both to be equal and interdependent. But Britain continued to donate generously to governments with patchy democracy and human rights records, including Ethiopia, Rwanda, Uganda, and Zambia where the abridgement of civil and political rights in the name of development and national unity were used by the political elite as a mechanism for preserving their own power and personal enrichment.

The Dutch government was the most categorical in rejecting the full belly thesis. This was made explicit in an August press release: "Upholding human rights is not a luxury that countries can afford only when they have achieved a certain level of socio-economic development." The Netherlands changed its bilateral aid policy in 1999, reducing the number of long term aid countries to nineteen (ten in Africa: Burkina Faso, Eritrea, Ethiopia, Ghana, Mali, Mozambique, Tanzania, Uganda, Zambia, and Zimbabwe; South Africa was included separately for "historical reasons"). Four selection criteria were named: sound socio-economic policy, good governance, level of poverty, and lack of access to money markets. The policy went on to specify that good governance "requires assessment of the quality of the management of public funds (including the extent of corruption in the country)." The level of democratization and respect for human rights would also be taken into account. But there was a qualifier: "This is not a question of assessing the situation at a given moment in time but of examining trends over a period of years, to determine whether the government is actively working towards improvement in both areas."

In a letter to the lower house of parliament, Minister for Development Cooperation Eveline Herfkens elaborated on the selection criteria. The screening process drew upon reports from not only the World Bank, IMF and U.N., but also NGOs, Human Rights Watch among them. Countries scores were adjusted downwards for weak governance. Sudan, Sierra Leone, Kenya, and Angola were removed for weak governance. CLte d'Ivoire was dropped because extra aid had not been shown to alleviate poverty. Zambia and Zimbabwe could have been removed, but because of the extent of current Dutch involvement, in the interests of continuity they were kept, with the plan to review the next year. But at the end September, aid to Zimbabwe worth U.S.$15 million a year was suspended, citing concerns over governance and economic policies. The Dutch government's action was matched soon after by the World Bank, which suspended discussion of disbursement of U.S.$140 million to Zimbabwe as long as reform targets set by the IMF were not met. At this writing the Netherlands had not removed Burkina Faso, Ethiopia, Uganda, or Eritrea despite clearly authoritarian tendencies that seemed to be inherently undemocratic in the longer term.

The Danish Minister for Development Cooperation, Poul Nielson, hosted a conference in Harare in September 1998 to assess the implementation of Danish development policy towards 2000, known as "Strategy 2000." In Strategy 2000 poverty was understood not only as lack of economic growth and social well-being, but also a lack of participation in the development process and the absence of a society built on the rule of law and good governance. There were clearly tones of the full belly thesis in the workshop report on cross-cutting themes. While the section "In relation to the protection of human rights and democratization" recognized that "most governments are not yet committed to sustaining human rights. Therefore civil society should be involved in promoting human rights." But the section added a qualifier:"democratization and respect for human rights are constrained by poverty, illiteracy and lack of education, and other such limitations.... Development aid conditionalities are undemocratic and abusive of human rights. Rather, policy dialogue and partnership should define the allocation of aid." DANIDA aid to Kenya was phased down, but aid to Burkina Faso, Eritrea, Uganda, Zambia and Zimbabwe was maintained despite their spotty human rights performance.

Anglo-French Cooperation on Africa

At a summit in Saint-Malo, France in December, 1998, British and French foreign ministers adopted a declaration based on "a common vision of promoting positive change and respect for human rights democracy and the rule of law in Africa." Britain's Robin Cook and France's Hubert Vedrine traveled to Ghana and CLte d'Ivoire in March as a follow up to the Saint-Malo declaration. At the same time, Britain announced a joint U.S.$1.5 million program to finance research into fighting tuberculosis in West Africa. The joint trip was designed "to press home the new spirit of cooperation" between the former colonial powers. The two ministers pledged to defend "democracy, human rights, good governance, and development." In Abidjan, Cook and Vedrine met with their ambassadors from twelve African countries: Angola, Burkina Faso, the Central African Republic, Ethiopia, Gambia, CLte d'Ivoire, Malawi, Namibia, Nigeria, South Africa, Tanzania, and Zimbabwe.

But in a week long visit to Africa-taking in Guinea, Togo, and Nigeria-that was supposed to underline a shift in French policy, moving away from direct involvement with dictatorial regimes and emphasizing democracy and human rights, President Chirac sounded discordant with the letter and spirit of Saint-Malo. Prior to the trip, President Chirac said that he planned to stress the importance of establishing democracy and the rule of law. True, while in Guinea, Chirac did raise the case of detained opposition leader Alpha Conde with the president. However, while still in the country he said that "there is an African rhythm" to democratization that he was constrained to respect; and in Togo, Chirac criticized the opposition parties for boycotting the parliamentary elections and called an Amnesty International report on human rights abuses in Togo a "manipulation." During the first visit to Nigeria by a French head-of state, France and Nigeria agreed to establish a joint economic commission. Chirac also said that he supported Nigeria's bid to have a permanent seat on the Security Council.

International Organization of the Francophonie

Further signs that it might be business as usual for France in Africa emerged during the eighth meeting of the International Organization of the Francophonie that took place in Moncton, New Brunswick, Canada, in September. Even though it was heralded as a youth summit, human rights quickly became the centerpiece of the discussions. This was a direct result of several attacks by the media and nongovernmental organizations on Canada and the Francophonie's decision to include leaders from countries with deplorable human rights records, including the DRC, Rwanda, and Burundi. The high profile of human rights in the media pushed the issue not only onto the front page of the papers, but also into the speeches of the principal dignitaries: head of the organization and former U.N. Secretary-General Boutros Boutros-Ghali said his three main priorities would be human rights, the democratization of member states, and assistance to ensure good government in poorer countries; in his opening address French president Jacques Chirac said that he wanted the Francophonie to "respect human rights"; and Canadian prime minister Jean Chretien said that "respect for rights and fundamental freedoms" would be central to the priorities of the Francophonie.

Despite these encouraging statements, the final action plan and declaration of the summit remained vague, containing few concrete actions to promote and protect human rights within the Francophonie. The action plan included provisions to hold an international conference in the year 2000 on democratic practices, rights, and freedoms, and to sponsor independent observer missions to monitor elections in member states. However, there was no mention of the possibility of expelling or suspending members who abuse humanrights. The Francophonie charter contains no provisions on the suspension or expulsion of members, but if, as Prime Minister Chretien expressed, the Francophonie was to become a "French Commonwealth" then a constitutional change of this nature was exactly what would be required. Also missing from the final declaration was a democracy watchdog group for the Francophonie that Chirac had proposed in his opening speech.

Despite the absence of tough language in the final declaration, Chirac was content with the summit's progress on human rights. He stated that, "The Francophonie is a gentle force. At every stage, it takes another step in the right direction. We're not looking for anything spectacular." Boutros-Ghali, on the other hand, turned the tables on the critics labeling them as hypocrites when he said, "It is absolutely useless to promote national democracy if on the international level we have an authoritarian or undemocratic regime."

United States

It was a sobering year for U.S. policy toward Africa. The huge international response to Kosovo galvanized the attention of high-level policy makers and overshadowed the dire conflicts raging in Africa. The deepening complexity of many of the key crises furthered the marginalization of Africa on the international scene. In the U.S., the Clinton administration's effort to launch a new Africa policy aimed at bringing Africa into the world economy-symbolized by a partnership with Africa's "new leaders" and crowned by President Clinton's 1998 visit to the continent-unraveled as these very leaders descended into armed conflict with each other. The failure to integrate human rights concerns effectively into the U.S. focus on economic development and regional security ensured that U.S. policy would veer toward a largely reactive posture, focusing on crisis management and conflict resolution.

Six countries joined the U.S. in signing the Entebbe declaration in March 1998 affirming their mutual interest in promoting democratic participation and respect for human rights. But in 1999, four were at war: Ethiopia remained locked in a devastating border war with Eritrea; Uganda and Rwanda both sent troops to Congo in an effort to overthrow the government of Laurent Kabila, and later the two countries themselves came to the brink of war. Thus, the "core principles" of the Entebbe declaration proved to be largely empty commitments. The Africa Crisis Response Initiative (ACRI) was another casualty. Uganda and Ethiopia were suspended from participation throughout 1999 due to their involvement in armed conflicts. In addition, without South Africa and Nigeria, which rejected the initiative at the outset, its impact would be limited at best.

Nevertheless, the Clinton Administration continued to devote considerable energy toward bringing Africa into the mainstream of U.S. policy. In March, the U.S. hosted the first meeting of African and American ministers, the "U.S.-Africa Ministerial Partnership for the 21st Century." Several cabinet secretaries visited Africa during the year, and the number of U.S. government agencies involved in Africa grew to more than a dozen. The Africa Growth and Opportunity Act had cleared in the House of Representatives and as of this writing was pending in the Senate. An Africa trade representative was appointed in the Office of the U.S. Trade Representative. The administration also worked to return assistance to Africa to its previous levels-about U.S.$800 million. Secretary of State Albright identified the transition in Nigeria as a global priority where the U.S. should be engaged.

The Ethiopia-Eritrea war was the primary area where the U.S. deployed sustained, high-level diplomatic activity. Although these efforts, coordinated with the OAU, did not yield immediate success, they contrasted markedly with the U.S. response to most African crises. Sudan, one of the few African countries consistently to achieve some prominence in the U.S. foreign policy agenda, remained subject to very strict sanctions. But the questions raised by the August 1998 bombing of a pharmaceutical factory in Khartoum continued to make it politically difficult for the U.S. to provide significant leadership on human rights issues, and U.S. policy-apparently limited to isolating the government-caused increasing tension with the E.U. Sudan was the only country in Africa (of five worldwide) named as a "country of particular concern" under the1998 International Freedom of Religion Act. Other crises, principally Sierra Leone, Angola and the DRC, remained the domain of certain officials in the Africa bureau but failed to galvanize high-level policy attention.

In the Great Lakes, the administration tried to fend off accusations that it was biased in favor of Rwanda and Uganda, but apparently remained committed to the framework of the "new leaders" policy. Despite some statements early in the year highlighting the need for accountability and respect for human rights by all sides in the DRC conflict, these policy goals never gained much currency in U.S. policy.

The Work of Human Rights Watch

In 1999, the work of Human Rights Watch focused on identifying the root causes of the conflicts that were responsible for the deplorable human rights situation in Africa. By combining the documentation of present human rights violations with historical and political analysis the Africa division attempted to provide policy makers and the public with a balanced and accurate description of the conflicts that plagued the continent. We also continued to dedicate significant resources toward improving our relationships with local human rights groups and exploring ways that we could work together.

Human Rights Watch developed a three-track approach to developing valuable relationships with local NGOs. Firstly, we committed resources to visiting local NGOs, identifying their needs and interests, and undertaking collaborative projects. Secondly, Human Rights Watch provided leading African human rights activists with the opportunity to undertake collaborative projects with our staff, enabling them to learn about our organization and our work methodology from the inside out. Lastly, Human Rights Watch remained committed to protecting human right activists from abroad.

While our brief continued to cover all of Africa south of the Sahara and we strove to expand our monitoring of francophone countries, a nucleus of countries constituted the focus of intensive research and advocacy: Angola, Burundi, Democratic Republic of Congo, Eritrea, Ethiopia, Kenya, Liberia, Nigeria, Mozambique, Rwanda, Sierra Leone, South Africa, Sudan, Uganda, and Zambia. Additionally, the Africa division undertook cross-country thematic research on arms flows, national human rights commissions, the rights of children and women, refugees and the internally displaced, and prisons. We maintained a field monitoring office in Kigali, Rwanda and created a new field office in Freetown, Sierra Leone.

The publication of Leave None to Tell the Story: Genocide in Rwanda just prior to the fifth anniversary of the Rwanda genocide was a landmark event for the Africa division. This 800-page book documented the political process that led to the 1994 genocide, debunking the popular myths that it was the result of "long-standing ethnic hatred" or a "failed state." The report quickly became a major reference for judicial authorities, policy makers, the press, rights activists, and scholars of the region. A representative of Human Rights Watch discussed the main themes with senior diplomats and policy makers in Rwanda, United States, and throughout the European Union. We also provided the OAU's International Panel of Eminent Personalities and the U.N. Inquiry into the United Nations' role in the genocide with detailed presentations. A representative of Human Rights Watch also served as an expert witness at a genocide trial in a Swiss military court which resulted in a guilty verdict and a sentence of life in prison.

As the war in the Democratic Republic of Congo dragged on and drew in the neighboring countries, we actively followed these developments. Early in the year, we documented human rights abuses which were committed by both government and rebel forces. The publication of these findings led to a renewed discourse with the government and representatives of Human Rights Watch met with ministers from the Democratic Republic of Congo on four different occasions. As activists from Congo came under attack, we actively worked to get them out of detention through these meetings and other public and private statements.

In July, Human Rights Watch published its findings on the forced round-up of Burundian refugees in Tanzania. A representative went to Tanzania to speak with the Tanzanian government and UNHCR officials about the treatment of these refugees and the conditions of the camps. Refugee rights issues were also thefocus of an April mission to Kenya to examine police harassment, confinement to rural camps, and deportations of refugees. In October, Human Rights Watch released its first report on civil and political rights in Uganda, detailing government harassment and discriminatory legislation. Our work on Uganda focused on the legal prohibitions facing independent political parties, and a national referendum scheduled for June 2000 under conditions tailored to further entrench a "movement system" under which Uganda was increasingly indistinguishable from a one-party state.

Human Rights Watch worked extensively on the situation in the oil-producing communities of Nigeria. A representative of Human Rights Watch traveled to Nigeria in February to release the findings of our research into corporate responsibility and human rights abuses in the oil producing communities. These findings received extensive coverage in Nigerian and international media and were referred to throughout the year by policy-makers. In May, Human Rights Watch published a further short report detailing abuses that took place in a military crackdown in the Niger Delta in late December and early January. A representative of Human Rights Watch also took part in a panel on the Niger Delta at a U.S. State Department conference on Nigeria in May and testified before the Africa

Subcommittee of the House of Representatives Committee on International Relations in August. Human Rights Watch also had a range of meetings with oil companies operating in Nigeria to discuss corporate responsibility for human rights abuses.

In Sierra Leone, Human Rights Watch initiated a successful campaign to raise the international profile of the eight-year civil war and the associated human rights abuses. With a new field office in Freetown, Sierra Leone, we extensively documented abuses committed by rebel and government forces during the Revolutionary United Front's assault on the capital, Freetown in January which were presented in a report released in June. Human Rights Watch also vigorously advocated for the inclusion of human right concerns in the U.N.-facilitated peace negotiations. In response to the inclusion of a general amnesty in the peace accords, Human Rights Watch wrote a score of letters to U.N. officials, national governments, and rebel leaders.

Our strong stance against the amnesty in Sierra Leone arose from similar experiences in other regions of Africa, particularly Angola. Human Rights Watch was able to release a landmark report on the Angolan conflict in September. We took aim at the inability of the United Nations to include human rights monitoring in the peace process and to enforce sanctions as crucial factors in the renewed conflict. Representatives from Human Rights Watch met with U.N. officials, members of the U.N. sanctions committee, and U.S. government officials. In October, a representative participated in a conference sponsored by the U.S. State Department and the National Intelligence Council concerning Angola.

Also in Southern Africa, Human Rights Watch wrote to the South African government during the year to express concern at the ANC's response to the report of the Truth and Reconciliation Commission, and at proposals put forward by the Department of Home Affairs for the creation of reception centers where asylum seekers would effectively be detained. Human Rights Watch also commented to the Parliamentary Portfolio Committee on the draft Refugees Bill before it was passed in November 1998. A representative of the organization traveled to South Africa in July to conduct research into workers' rights on farms, and set up contacts with local groups working on behalf of farm workers and farmers for the purpose of future cooperation on a report detailing abuses on farms. Regarding Zambia, in May we actively advocated that donor countries should continue to attach clear human rights benchmarks to the release of balance of payments support in advance of the World Bank Consultative Group meeting.

In March, we released a major study of the human rights causes of the 1998 famine in Sudan. A representative of Human Rights Watch attended an NGO conference in Kampala in February, a Nuer-Dinka peace and reconciliation conference in southern Sudan in February, a conference of religiously-based groups working on Sudan in Germany in May, and others to press for the adoption of the recommendations made in the study. In August, we fielded a second mission to southern Sudan and were able to visit Khartoum aswell. In Khartoum, a representative participated in a conference sponsored by the government and UNICEF on the elimination of slavery, and in southern Sudan our representative investigated human rights violations associated with the war. Our Sudan research also focused on religious freedoms. In September, a representative made a presentation on religious human rights at a conference discussing the 1998 U.S. International Freedom of Religion Act and in June attended a conference on religious freedom in Sudan in Indianapolis.

Also in the horn of Africa, Human Rights Watch fielded a mission to Eritrea in April and May of this year to interview Ethiopians of Eritrean descent who were forcibly deported as a result of the war between these two countries.

ANGOLA

Human Rights Developments

Angola returned to all-out war in December 1998. The human cost of the war in 1999 was impossible to determine with precision, but the United Nations estimated that more than 2.1 million people had been displaced. The appalling levels of death and destruction were in large part consequences of the widespread and systematic violations of the laws of war for which conflicts in Angola were previously notable. Both the government and rebels, the National Union for the Total Independence of Angola

(UNITA) were responsible for these violations. In particular, indiscriminate shelling of besieged cities by UNITA resulted in destruction of property and the death of over one thousand civilians.

The ruling Popular Movement for the Liberation of Angola (MPLA) held its fourth Congress in Luanda from December 5 to 10, 1998. At its opening President dos Santos stated that the only path to lasting peace was the total isolation of UNITA leader Jonas Savimbi and his movement. The president called for termination of the U.N. Observer Mission in Angola's (MONUA) mandate and an end to the Lusaka peace process. MONUA withdrew for safety from all UNITA-held areas on December 6.

Just prior to the opening of the congress, the government launched a military offensive in central Angola with air raids on Bailundo and Mungo, followed by attacks on Andulo. Subsequently UNITA forces launched their own attacks and inflicted heavy casualties on the government's forces and on civilians. In the Huambo and Kuito sectors the government was forced to withdraw and in Kuito only escaped further losses because UNITA's mechanized units ran out of fuel. The widening hostilities spread, with laying of new mines and the indiscriminate shelling of Malanje, Kuito, and Huambo by long-range UNITA artillery.

Two U.N. aircraft were shot down near Huambo, on December 26 and on January 2, 1999, resulting in the deaths of fifteen passengers and eight crew members respectively. Both aircraft, chartered by MONUA, went down in areas of active military operations. The two warring Angolan parties denied any responsibility for these incidents and initially showed no inclination to assist search and rescue operations. U.N. investigations of the wreckage of both planes established that they had been tampered with and that there had been efforts to conceal them; the flight recorders had been removed.

On January 27, the National Assembly passed a resolution declaring Jonas Savimbi "a war criminal and international terrorist." It called for legal procedures leading to Savimbi and his direct collaborators being held accountable, in criminal and civil law, both nationally and internationally.

On January 29, President dos Santos appointed a new cabinet and temporarily assumed the functions of prime minister and commander-in-chief of the FAA. At the inauguration ceremony of the new government, the president stated that Angola had to wage war to achieve peace.

On January 26, UNITA occupied the provincial capital of Mbanza Congo in the north, although this appeared to have been retaken on February 12 by government forces. On January 30, UNITA captured theCapenda hydroelectric project, about 50 kilometers south-west of Malanje. After initial successes a second offensive to capture Bailundo was stopped by UNITA in early March resulting in a significant loss of equipment to the rebels and the reported loss of 1,000 men. Fighting continued in central and northern Angola and in mid-September the government launched its third offensive against UNITA, Operation Cacimbo.

The effects of the conflict led to more human displacement. According to the U.N. the numbers of internally displaced persons had reached 1.7 million persons, 15 per cent of the total population, with additional flows of refugees into the Democratic Republic of Congo, Namibia, and Zambia.

On July 24, the Angolan authorities issued an arrest warrant for Savimbi on charges that included rebellion, sabotage, murder, and torture. The warrant also accused Savimbi of kidnapping, robbery, and the use of explosives - including planting of landmines at sites used by civilians. U.N. Secretary-General Kofi Annan criticized the warrant saying it was "wrong," and that "you make peace with enemies, and to make peace you have to have communications, either directly or through third parties."

Mine warfare intensified after hostilities resumed in December 1998 and mines were used by both sides, although Angola had signed the Ottawa Mine Ban Treaty in December 1997. This also flew in the face of Angola's strong rhetorical support of an antipersonnel landmines ban. Human Rights Watch received numerous reports in 1999 of renewed landmine warfare in central and northern Angola. At the first meeting of the State Signatories of the Ottawa Landmine Ban Treaty in Onlineuto on May 3-7, 1999, the Angolan government delegation justified the renewed use of landmines saying it was "at war."

Human rights violations in Angola increased throughout the year and were at a much higher level than in 1998. UNITA maintained tight control of the population in the areas it controlled and continued to prevent the enjoyment of greater freedoms through arbitrary killings, threats, forced conscription, and the demand of sexual services. In December, UNITA military forces briefly occupied the town of Cunje and killed twenty-five civilians. In April, when some thirty villagers attempted to return to their homes in the village of Muconda in Lunda Sul province UNITA caught them and killed twenty-five of them with knives and machetes.

NGO workers were also targeted. On April 14, Save the Children/USA's Kuanza Sul manager Antonio Ferreira and church NGO worker Pastor Manuel Gabriel were killed by axes during an ambush on the Gabela - Sumbe road. Fereira suffered heavy cuts on his jaw, neck, and spine and was pierced in the heart with a pointed instrument. Pastor Gabriel was murdered with sharp objects and his body mutilated. Mutilations had not been common in Angola's long history of conflict but with the return to war appeared more common place. For example on December 5 two men caught by UNITA had their ears cut off and were sent to the government with a message.

The abductions of civilians by UNITA was commonplace. People of all ages were abducted, but abductees and witnesses point to young men, women, and young girls and boys as preferred targets. In December 1998 two priests and six nuns were reportedly abducted after UNITA took control of Chiguar, Bie province. Foreign workers for commercial firms were also abducted for forced labor or as a political tool to obtain protection or ransom payments or to close down commercial operations. On November 8, 1998 UNITA attacked the Yetwane diamond mine which was partly owned by the Canadian company Diamond Works. Eight people were killed and ten were also abducted, including South African Doug Larsen and

Briton Jason Pope.

On May 12 UNITA claimed to have shot down an Antonov AN-26 near Luzamba and captured its three Russian crew. This was followed on July 1 by a UNITA claim to have shot down an Antonov-12 aircraft in northeastern Angola and captured its five Russian crew. UNITA had attempted to negotiate with the Russian government over their release.

The private property of civilians was frequently pillaged and their homes intentionally burned in violations of the laws of war. For example UNITA looted all moveable properties and left booby traps and landmines when it withdrew from Vila Nova in December.

UNITA since December had besieged the cities of Huambo, Kuito and Malanje and indiscriminately shelled them. There was no sign that in any of these barrages UNITA was targeting only military positions, but ther shelling appeared intended to sow fear and demoralize civilians in addition to closing airports and the access they provided for relief aid. Civilian houses lost roofs, and one church was hit in these attacks. UNITA appeared to have used 120mm artillery in these bombardments. The bishop of Malanje had reported that more than 1000 people had been killed and 700 injured in Malanje by the shelling. On one occasion in March over a hundred shells landed in the city. Because of UNITA's siege Malanje suffered from lack of food, with supplies only for 94,000 of the more than 200,000 people displaced by the fighting displaced by the fighting elsewhere who had swelled its population.

The government embarked upon a crackdown on UNITA supporters after the resumption of all-out war. On January 9 two UNITA deputies, Carlos Alberto Calitas and Daniel Jose Domingos were arrested by police. This was followed on January 13 when three more, Joao Vicente Vihemba, Manuel Savihemba, Carlos Tiago Candanda were also picked up. On February 2 the National Assembly lifted the deputies' immunity and they were told they were being held under the provisions in the penal code for those who posed a threat to state security. On May 21 Manuel Savihemba was released but the other four deputies continued to be in jail. Human Rights Watch monitored the trial, which appeared to follow a special procedure not established by law and to drag on. There were also concerns for the health of four of the deputies

Human Rights Watch received a stream of reports indicating government troops too violated the laws of war. For example the government admitted its forces had been indiscriminate in their aerial bombing of Mbanza Congo in February 1999, while its aircraft also bombed other UNITA towns. On December 16, 1998 prisoners were reportedly paraded through Kuito in army vehicles as bystanders called on soldiers to cut their throats; parading prisoners constituted humiliating and degrading treatment under the laws of war. The International Committee of the Red Cross attempts to gain access to prisoners in this conflict had shown little progress at time of writing. In February 1999 after the government retook the city of Mbanza Congo from UNITA, government forces were reportedly responsible for the killing of several civilians who had stayed behind.

The government's inability or unwillingness to pay the majority of its army and police personnel resulted in widespread extortion and theft. Government personnel frequently confiscated food, including donated relief supplies, livestock, and personal property, often after forcibly depopulating areas and robbing the displaced people. Relief efforts in Kuito after UNITA's siege was lifted were hampered by looting when the aid workers withdrew: government troops looted the World Food Program warehouses and the warehouses of the United Nations Children's Fund (UNICEF), Handicap International, and the U.S. charity CARE's warehouse was also looted in this three-day looting frenzy by government troops in mid-December 1998. Human Rights Watch also interviewed an eyewitness who described the stripping of crops from fields by government troops near Uige in March 1999, and a man who said he was shot in the legs for not immediately offering his possessions to hungry soldiers.

The government persisted in its strategy of manipulating the reporting of UNITA human rights abuses, even as those abuses had been of a severity needing no exaggeration to merit concern and outrage. For example when the C-130 U.N. aircraft was shot down on January 2, 1999 the government claimed that UNITA was holding seven survivors. When the U.N. search team reached the crash site late, however, it concluded that all the passengers and crew had been killed in the crash. In July the government claimed that UNITA had massacred up to one hundred people in Chipeta. However an investigation by the U.N. concluded that those reports were no more than government propaganda.

With the return to war, the space that opened up for independent media and foreign journalists based in Angola was eroded away again in 1999. On January 11, two Angolan journalists from Radio Morena in Benguela were arrested by police for having rebroadcast a news program that featured UNITA Secretary General Lukambo Gato. Radio Ecclesia, which broadcast the Africa program of the Portuguese radio station Renascenca, also became the target of police attention for broadcasting material that included UNITA officials. Foreign journalists including reporters from Portugal's Diario de Noticias and the BBC World Service received threats about their coverage of UNITA.

The government issued a formal warning on January 21 when Minister for Social Communication (Information) Pedro Vaal Neto warned that licenses to publish would be revoked if the independent media continued to cover stories about young people not wanting to be conscripted into the armed forces.

The harassment of the media continued throughout the year. In August Radio Ecclesia was raided twice by police after it rebroadcast an interview with Jonas Savimbi. The editor of the independent newsletter Folha 8 , William Tonet was also told that he can not leave the country in August and detained in October and the editor of Agora was warned to keep his paper out of controversial issues. A number of other independent and state media journalists were also warned to keep their reports pro-government.

The renewed conflict and accompanying human rights abuses and violations of laws of war were being fueled by new flows of arms into the country. The government became once again a prime arms purchaser in sub-Saharan Africa. The government paid for its arms purchases through bank loans, oil profit remittances, and mining and other concessions. With the decline of international oil prices in the first half of 1999, the government was short of cash and used some of the U.S.$870 million of funds generated from signature bonus payments on three oil exploration and concession blocks. The multinational oil companies BP-Amoco, Exxon, and ELF had a dominant role in these blocks. Russia, the Ukraine, Belarus featured as prime sources of arms to the Angolan government.

UNITA also purchased weapons and fuel from foreign sources as well by using revenue generated by diamond sales. Such purchases violated an international arms and oil embargo imposed by the U.N. in September 1993 and a diamond embargo in June 1998. Albania, Bulgaria, Romania, Ukraine were sources of supplies for UNITA and sanctions busting operations worked through Cote D'Ivoire, Burkina Faso, Togo, Central African Republic, Kenya, South Africa, Uganda, and Zambia.

Defending Human Rights

With the country back at war in 1999 the churches became bolder than in the past in their calls for peace and an end to human rights abuses. In January the Catholic Church issued a strongly worded pastoral letter, stating flatly that the war did not represent the people's voice, that both sides neglected the welfare of their troops, and that the troops on both sides stole from the people. A number of Catholic bishops subsequently called for reconciliation and condemned human rights abuses. At the end of its congress in Lubango in July the bishops issued a further denouncement of the war. The conflict "has become twice-deadly...it kills with weapons and kills with hunger" the bishops said. Indiscriminate attacks on civilians and aid workers were acts of "cowardly banditry," the statement added. They also criticized those who provided weapons to the Luanda government and UNITA rebels, and said the conflict was fed by greed for Angolan petroleum and diamonds.

Several peace initiatives were also launched by, among others, the Angolan Reflection Group for Peace (GARP) and the Angolan Group for the Promotion of the Culture of Peace (GAP). Both these groups sought to buildup a culture of human rights and call for accountability for past rights abuses.

The Role of the International Community

United Nations

By early 1999 following the outbreak of war and the shooting down of two U.N. aircraft, the secretary-general decided that the U.N. Observer Mission in Angola (MONUA) could do no more. He recommended that its mandate be terminated on February 26 to be followed by a phased withdrawal. The Security Council opposed this, calling for a continued multidisciplinary U.N. operation in Angola. MONUA's mandate expired in February and the U.N. special representative in Angola, Issa Diallo, left Angola on March 15, marking the end of the peacekeeping operation. For the next five months the U.N. negotiated with the Angolan government over permission for a follow-up U.N. operation. Eventually in late July the Angolan government permitted a thirty-strong United Nations Office in Angola (UNOA) which would include twelve human rights specialists.

The U.N. also focused its efforts on trying to open up neutral humanitarian corridors for relief aid. For much of the year the Angolan government opposed this but by August it had moderated its position to show some interest in assisting aid distribution. In January Canada's ambassador to the U.N., Robert Fowler, took over the Angola Sanctions Committee. Fowler toured southern Africa in May and Europe in July, and made nineteen preliminary recommendations. At the end of July, two ten-person expert panels were convened, with an initial mandate of six months.

The U.N.'s human rights division, which had done little during much of the Lusaka peace process, improved in late 1998, helped by the hiring of a human rights professional to head it. However, the return to war in December curtailed its activities dramatically and it had in 1999 been unable to play the role envisaged for it, performing little serious investigative work on rights abuses; publishing no findings, and discouraging journalists from talking to it.

European Union, Norway, and Canada

The European Union (E.U.) had played a supportive role in the Angolan peace process but lacked the leverage of the United States. Portugal, the former colonial power and a member with Russia and the U.S. of the "Troika" monitors in the peace process, continued to play an important role but disappointingly was not active in pressing rights issues. During the year the E.U. issued a number of communiques which included condemnations of human rights abuses by both sides.

United States

Angola in 1999 was the U.S.'s second largest site for investment and third largest trading partner in sub-Saharan Africa. The majority of this trade was from Angolan oil production, which exceeded

750,000 barrels per day. U.S. investment in the petroleum sector was valued at over $4 billion, with billions more of investment planned. The U.S. continued to be Angola's largest trading partner, purchasing 50 per cent of its oil exports.

On October 28, 1998 U.S. Assistant Secretary of State for African Affairs Susan Rice visited Angola on the second leg of a seven-nation tour in the region. The U.S. delegation visited Angola to discuss the Angolan peace process and the current situation in the Democratic Republic of Congo (DRC). Bilateral relations had cooled so much by this stage that Rice failed to see President dos Santos or any official of substance. During her visit Susan Rice proposed the creation of a Bilateral Consultative Commission to broaden and deepen the engagement between Angola and the United States, a proposal the Angolan government later responded to positively in December, leading to further discussions between the two governments. U.S. Deputy Assistant Secretary of State for African Affairs Witney Schneidman then visited Angola to discuss trade issues and how to proceed with the Bilateral Commission.

Schneidman arrived in Angola on February 12 for a three day visit. His primary focus was to discuss bilateral economic relations and the current situation of the war, and urged support for a continued U.N. presence in Angola. Schneidman's visit represented a new U.S. policy focus toward Angola, emphasizingtrade and commerce and down-playing controversial issues such as human rights. The U.S. Assistant Trade Representative for Africa, Edward Casselle visited Luanda in July to encourage more business.

Senior Angolan government officials met with their U.S. counterparts on June 30 and July 1 in Washington D.C. as a first step toward establishing a Bilateral Consultative Commission to expand cooperation between the two countries. The first meeting of the Bilateral Consultative Commission was held September 30 in Washington D.C during which the main focus was trade and investment.

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